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LINE 5

25-CIV-03590

ALICIA WOODFALL-JONES VS. MATT FABRY, ET AL.

ALICIA WOODFALL-JONES

MATT FABRY

ARIEL STRAUSS

ROBERT CARROLL MAY

DEMURRER TO RESPONDENTS' ANSWER

TENTATIVE RULING:

In this case, Petitioner Alicia Woodfall-Jones seeks a writ of mandate and declaratory relief related to permit granted for a wireless service facility in the City of San Mateo. Respondents are the City of San Mateo, by and through the City Council of the City of San Mateo; Matt Fabry; and the Sustainability & Infrastructure Commission of the City of San Mateo. Real Parties in Interest are Crown Castle Fiber LLC and Verizon Wireless.

Here, Petitioner demurs to Affirmative Defenses No. 2, 4-8, and 11-14 in Respondents' Answer. Respondents have not opposed the demurrer.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) This Court believes, especially when the issue is one of law, "that the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update).) Therefore, the Court has substantively reviewed Petitioner's demurrer.

Petitioner's demurrer is SUSTAINED as to Affirmative Defenses No. 2, 4-8, and 12-14, with leave to amend, and OVERRULED as to Affirmative Defense No. 11.

LEGAL STANDARD

A party may demur to an answer on three separate bases: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; and (3) failure to state whether a contract alleged in the answer is written or oral. (Code Civ. Proc. § 430.20.)

An Answer must contain a "statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b)(2).) An affirmative defense is a "new matter" that is something "not put

in issue by the plaintiff” and must be pled with the necessary facts. (*Dept. of Finance v. City of Merced* (2019) 33 Cal. App. 5th 286, 294.)

An Answering party is subject to the same “ultimate facts” pleading standard as is required for pleading a complaint. (*See FPI Develop., Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *South Shore Land Co. v Petersen* (1964) 226 Cal.App.2d 725, 732; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Thus, like a demurrer to a complaint, a demurrer to an answer tests affirmative defenses for facial legal sufficiency, not whether the defense will ultimately prevail. (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) However, “affirmative defenses [that] consist of legal conclusions [will] survive neither a demurrer nor a motion for judgment on the pleadings.” (*Westly v. Board of Administration* (2003) 105 Cal.App.4th 1095, 1118.)

In determining whether an answer states facts sufficient to constitute a defense, courts accept the factual allegations of the answer and the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code of Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The pleading is construed liberally (see Code of Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

While generally, demurrers to answers are disfavored because discovery can obtain the basis for the affirmative defenses (*Cal. Prac. Guide Civ. Pro. Before Trial* § 7.35.1 (TRG June 2026 update)), this case is a writ petition where there is no or limited discovery. Accordingly, the Court addresses the merits of the demurrer.

DISCUSSION

The Court addresses each of the challenged affirmative defenses below, separately.

Second Affirmative Defense: *Respondents allege that Petitioner has a plain, speedy, and adequate remedy at law.*

The Court finds that Respondents fail to provide facts supporting this defense or otherwise explain what alleged remedy is available to Petitioner. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Fourth Affirmative Defense: *Respondents allege that Petitioner is barred in whole or in part from prosecuting the purported causes of action set forth in the Petition by the doctrine of estoppel due to its knowledge, statements, conduct, approval, authorization and/or ratification.*

The Court finds that Respondents fail to provide any facts regarding the “statements, conduct, approval, authorization, and/or ratification” that would allegedly provide a basis for the affirmative defense of estoppel. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Fifth Affirmative Defense: *Respondents allege that Petitioner failed to exhaust requisite remedies and is thereby precluded from proceeding with this matter in Superior Court.*

The Court finds that Respondents fail to provide facts as what administrative remedies Petitioner failed to exhaust. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Sixth Affirmative Defense: *Respondents allege that Petitioner's claims are barred because Petitioner has waived any rights to relief asserted in the Petition by its own conduct or inaction.*

The Court finds that Respondents fail to plead facts regarding the "conduct or inaction" by Petitioner that allegedly constitutes a waiver of relief. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Seventh Affirmative Defense: *Respondents allege that Petitioner's claims are barred in whole or in part by the doctrine of unclean hands because Petitioner's alleged bases for seeking legal and/or equitable relief were the result of Petitioner's own actions and/or inaction.*

The Court finds that Respondents fail to allege facts regarding Petitioner's actions or inactions supporting an affirmative defense of unclean hands. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Eighth Affirmative Defense:

Petitioner explains that the Eighth Affirmative Defense is entitled "Failure to State a Cause of Action" but contains the same text as the Fourth Affirmative Defense and Petitioner objects on the same bases.

Indeed, the Eighth Affirmative Defense is duplicative of the Fourth, which fails to provide any facts regarding the "statements, conduct, approval, authorization, and/or ratification" that would allegedly provide a basis for the affirmative defense of estoppel. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Eleventh Affirmative Defense: *The Petition fails to set forth facts that would constitute a basis for an award of costs of suit against the City. To the extent that Petitioner's claim for costs of suit arises under the federal Telecommunications Act, Respondents further allege that Petitioner's claim for costs of suit is not recoverable. See City of Rancho Palos Verdes v. Abrams, 544 U.S. 113, 121 (2005).*

Here, Petitioner argues that there is no legal basis to prevent Petition from recovering costs. Petitioner explains that the default rule in California is that a prevailing party is entitled to costs under Code of Civil Procedure, section 1032. The Telecommunications Act of 1997, 47 U.S. Code § 332(c)(7), limits the authority of states and localities to deny zoning-type applications for "personal wireless service facilities" if the denial would "have the effect of prohibiting the

provision of personal wireless services,” and grants only applicants a federal cause of action when a permit is denied in violation of Section 332. Plaintiffs opposing an approval do not bring a cause of action under the Telecommunication Act. (*See Drago v. Garment*, 691 F.Supp.2d 490 (S.D.N.Y. 2010).) Petitioner does not raise any claims under the Telecommunications Act. Petitioner argues that Respondent’s cited case, *City of Rancho Palos Verdes v. Abrams*, 544 U.S. 113, 121 (2005) did not involve claims by permit opponents brought under state law and is inapplicable.

The Court disagrees. Like allegations in a complaint, a demurrer tests affirmative defenses for facial legal sufficiency, not whether the defense will ultimately prevail. (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) Thus, an affirmative defense need only state a cognizable theory that would defeat or limit relief if the facts bear out. Here, Defendant *conditionally* asserts that costs are not recoverable “[t]o the extent that Petitioner’s claim for costs of suit arises under the federal Telecommunications Act.” The Court acknowledges that the Petition’s causes of action only invoke state statutes. However, whether Petitioner’s claims implicate TCA-governed standards regarding the issuance of wireless service facility permits is a substantive question that cannot be resolved on the face of the pleadings. Respondents’ affirmative defense states a cognizable theory that limits relief, to the extent that any claim for costs arises from the TCA.

Accordingly, Petitioner’s demurrer is OVERRULED as to this affirmative defense.

Twelfth Affirmative Defense: *Respondents assert that the Petition fails to state any claim for relief because Respondents acted in good faith at all material times based on all the relevant facts and circumstances. Also, Respondents acted in an objectively reasonable manner under all the relevant facts and circumstances.*

The Court finds that Respondents fail to allege facts supporting that they acted in good faith and further fail to explain why that would constitute an affirmative defense in this action. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Thirteenth Affirmative Defense: *Respondents assert that Petitioner’s claims are barred under the doctrine of laches.*

The Court finds that Respondents fail to provide facts regarding any allegedly unreasonable delay by Petitioner and prejudice Respondents to support an affirmative defense for laches. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Fourteenth Affirmative Defense: *Respondents assert that the declaratory relief sought by Petitioner is improper because it will not settle Petitioner’s dispute and asks this court to case [sic] judgment on the wisdom of a local ordinance adopted pursuant to powers conferred on the City by the San Mateo City Charter.*

Petitioner argues that this affirmative defense fails offer a legal or factual basis for application to the first two causes of action. Petitioner further argues that this affirmative defense provides no reasoned basis for the characterization that declaratory relief sought by Petitioner “asks this court to case [sic] judgment on the wisdom of a local ordinance.” The declaratory relief does not challenge the City’s ordinance. The City similarly provides no legal support for implicit assertion that declaratory relief is improper in for the purposes requested by Petitioner. To the contrary, Petitioner sites several cases indicating that declaratory relief may be used in the fashion requested by Petitioner. (See Petition, ¶¶162 69.)

The Court agrees. Respondents fail to explain how, specifically, the relief sought is improper and that the declaratory relief sought asks the court to judge the wisdom of a local ordinance. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

CONCLUSION

Petitioner’s demurrer is SUSTAINED as to Affirmative Defenses No. 2, 4-8, and 12-14, with leave to amend, and OVERRULED as to Affirmative Defense No. 11.

Respondents may file an amended Answer within ten (10) days of notice of entry of order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

26-CLJ-02675

WELLS FARGO BANK, N.A. VS. DEBORAH V BURSE

WELLS FARGO BANK, N.A.
DEBORAH V BURSE

EDGAR B LOPEZ
TAIRA G. SCOTT

MOTION FOR SUMMARY JUDGMENT PURSUANT TO CCP 437C

TENTATIVE RULING:

Plaintiff Wells Fargo, N.A.'s Unopposed Motion for Summary Judgment Pursuant to CCP 437c is DENIED WITHOUT PREJUDICE.

As a preliminary matter, notice of the motion, the motion, and its supporting papers were purportedly served by mail to "DEBORAH V BURSE, an individual c/o Taira Scott Esq." at "P.O. Box 8769, Philadelphia, PA 19101." (Jun. 11, 2026 Proof of Service, § 5.) However, Plaintiff Wells Fargo, N.A. ("Wells Fargo") was and is required to serve all papers electronically. (See Cal. Rules of Court, rule 2.251(c)(3); Super. Ct. San Mateo County Local Rules, rule 2.1.7(a)(7).)

Even were service by mail were permitted, there is no indication that the envelope was properly addressed to include Huron Legal Group, P.C., which is part of the address of record of Burse's counsel. (See Apr. 27, 2026 Answer, p. 1.) "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as is the case here. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364.)

Therefore, there is no indication notice of the motion was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied without prejudice to a renewed motion supported by valid proof of proper service.

If the tentative ruling is uncontested, it shall become the order of the Court without need for a formal order.
